

Court No. - 21

Case :- WRIT - C No. - 2360 of 2023

Petitioner :- Bhupendra Singh

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. And 2 Others

Counsel for Petitioner :- Chandra Bir Singh

Counsel for Respondent :- C.S.C., Sunil Kumar Dubey

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Vikram D. Chauhan, J.

Learned counsel for the respondent Electricity Department shall obtain instructions as to whether the procedure prescribed under the Electricity Supply Code for making assessment in case of theft of electricity has been followed in the instant case or not and if not followed, respondent no. 2 will show cause by filing his affidavit.

List as fresh on 1.2.2023.

In the meantime, the recovery proceedings will remain in abeyance.

(Vikram D. Chauhan J.) (Manoj Kumar Gupta, J.)

Order Date :- 24.1.2023

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Counsel for Respondent :- C.S.C., Sunil Kumar Dubey

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Vikram D. Chauhan, J.

Counsel for the respondents seeks two days' further time to complete his instructions.

List as fresh on 06.02.2023.

Interim order, if any, is extended till the next date of listing.

(Vikram D. Chauhan, J.)

(Manoj Kumar Gupta, J.)

Order Date :- 1.2.2023

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Counsel for Respondent :- C.S.C., Sunil Kumar Dubey

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Vikram D. Chauhan, J.

Counsel for the respondents is in receipt of instructions. Respondent no.2 will file his affidavit in compliance of order dated 24.01.2023.

List as fresh on 15.02.2023.

Interim order is extended till the next date of listing.

(Vikram D. Chauhan, J.) (Manoj Kumar Gupta, J.)

Order Date :- 6.2.2023

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Court No. - 21

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Counsel for Petitioner :- Chandra Bir Singh

Counsel for Respondent :- C.S.C., Sunil Kumar Dubey

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Syed Qamar Hasan Rizvi, J.

Sri Vikas Rastogi holding brief of Sri Sunil Kumar Dubey appearing for respondents no.1 and 2 states that he has filed an affidavit in the Registry on 13.2.2023 in compliance of previous order dated 24.01.2023. By the said order, respondent no.2 was directed to file affidavit showing how the procedure prescribed under the Electricity Supply Code, 2005 has been followed in making the assessment.

A copy of the affidavit said to have been filed in the Registry on 13.02.2023 has been placed before us for perusal as the original affidavit has not been restored by the office so far. We find that the said affidavit is by Junior Engineer and not by respondent no.2. Moreover, the affidavit is completely vague and there is no factual assertion as to how the procedure prescribed under the Electricity Supply Code had been followed.

We direct respondent no.2 to appear in person on 20.02.2023 alongwith relevant records to show how the procedure prescribed under the Electricity Supply Code had been followed. In case the same had not been followed, we require him to take steps to remedy the wrong in the meantime.

List as fresh on 20.02.2023.

The order shall be communicated to respondent no.2 by learned counsel appearing on his behalf.

Office shall restore the affidavit said to have been filed in the Registry on 13.02.2023.

(Syed Qamar Hasan Rizvi, J.) (Manoj Kumar Gupta, J.)

Order Date :- 15.2.2023

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Court No. - 21

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Counsel for Petitioner :- Chandra Bir Singh

Counsel for Respondent :- C.S.C., Sunil Kumar Dubey

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Syed Qamar Hasan Rizvi, J.

In compliance of the previous order of this Court, respondent no. 2 has filed his personal affidavit and is also present in Court.

The petitioner has challenged the demand notice dated 14.9.2021 issued by respondent no. 2 for recovery of electricity dues from the petitioner in a case of theft of electricity.

In the affidavit filed by respondent no. 2, it is stated that the impugned recovery has been withdrawn and liberty has been sought to pass a fresh order.

Accordingly, the petition is disposed of with liberty to the concerned respondents to pass a fresh order strictly in accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2005.

Order Date :- 20.2.2023

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(Syed Qamar Hasan Rizvi, J.) (Manoj Kumar Gupta, J.)